

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALANA CONNER,

Petitioner

VS.

HOWARD ROSE,

Respondent

) Case Number: FDI-26-802409

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

TO SELECT AND APPOINT AN APPRAISER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Alana Conner (Wife) and Respondent Howard Rose (Husband) married on 2/5/2020 and separated on 12/15/2025, for a marriage of 5 years and 10 months. The parties have no minor children. Wife is represented by attorney Amrit Kullar of the Lewellen Family Law Group. Husband is self-represented.
- 2) On for hearing is Wife's Request for Order filed 3/20/2026. Wife states she has made good faith efforts to settle the issues in the parties' case since their date of separation. Wife states the primary issue remaining is the disposition of the marital residence located at 31 Navajo Ave. in San Francisco. Wife states the parties agreed to obtain a neutral third-party appraisal to determine the value of the property. After the appraisal was completed, Husband then refused to accept it and has sent aggressive communications to Wife stating he is not required to agree to a buyout and that Wife needs to accept a higher value. Wife asks the Court to:

- a. Grant Wife the right to buy out Husband's Navajo Ave. residence at the fair market value as of the date of separation based on the existing appraisal or another Court-ordered neutral third-party appraisal tied to the date of separation;
 - b. Order Husband to cooperate in all steps necessary to effectuate the buyout, including execution of all required documents;
 - c. Order the property to be immediately listed for sale with a Court-appointed real estate agent if a buyout is not completed within a time certain set by the Court;
 - d. Order both parties to cooperate with the listing and sale of the property including reasonable access, preparation, and execution of all necessary documents; and
 - e. Set a timeline for completion of the buyout or sale to ensure prompt resolution.
- 3) Also on for hearing is Husband's Request for Order originally filed as an ex parte request on 4/10/2026. Husband states that while Wife is seeking a Court-ordered buyout, she is blocking Husband's right to obtain an independent valuation of the home. Husband states he is currently residing in Washington state. Husband states he contacted Wife to arrange a time to retrieve his belongings from the Navajo Ave. property, but Wife wants to move items that she deems his into a single room and forbid his access to other areas unless he hires and pays for a "licensed and insured professional service provider" to act as an observer. Husband states he was able to arrange a time to meet at the residence, but Wife hired third-party observer to monitor his movements and restrict him from accessing the stairwell or the main floor. Husband asks the Court to:
- a. Grant Husband access to all shared and common areas of the Navajo Ave. property including but not limited to the kitchen, living areas, dining rooms, garage, laundry facilities, bathrooms, and all outdoor spaces;
 - b. Prohibit Wife from designating or recharacterizing any common or shared areas as private or personal space for the purpose of denying Court-ordered access;
 - c. Permit Husband to give access to the home to up to three licensed real estate agents of Husband's choosing to perform a walkthrough of no more than 60 minutes with 48 hours' notice via text and email;

- d. Grant Husband unrestricted access to the entire residence for the purpose of identifying and removing his sole and separate property and permit Husband to remove property with 48 hours' notice via text and email;
 - e. Prohibit Wife from obstructing Husband's entry or removal of items during the noticed periods;
 - f. Husband to provide Wife with a fully copy of any written valuation estimates or reports within 48 hours of Husband's receipt.
- 4) On 4/8/2026, Wife filed a Responsive Declaration. Wife states there is no urgency for Husband's requests and she already put at issue the additional valuation of the property in her 3/20/2026 Request for Order. Wife states that Husband was able to remove a portion of his personal belongings. Wife states she was not present while Husband was there and, in her absence, she hired a licensed private investigator to act as a neutral observer who did not position himself on or near either staircase and did not physically or otherwise obstruct access to any area. Wife also states Husband did not attempt to access the upstairs during the retrieval. Wife also states that Husband participated in the previously performed appraisal. Wife states that multiple walkthroughs for additional valuations is excessive and introduce inconsistent and potentially biased valuation inputs.
- 5) On 4/8/2026, Wife's attorney filed a declaration stating that Husband improperly served his ex parte Request for Order directly on Wife even though Wife's attorney notified Husband that she is now represented by counsel.
- 6) Per the Temporary Emergency (Ex Parte) Orders filed 4/10/2026, the Court granted the following orders. The Court also set Husband's Request for Order filed 4/10/2026 for hearing on shortened time for 5/5/2026.
- a. VALUATION ACCESS: Respondent and his agents (including licensed real estate professionals) shall have unrestricted access to the interior and exterior of the residence for the purpose of valuation and appraisal.
 - b. NOTICE REQUIREMENT: Respondent shall provide Petitioner with 48 hours' written notice (via email or text) prior to any scheduled access.

- c. PROPERTY RETRIEVAL: Respondent is authorized to enter the residence to retrieve his personal property, professional records, electronics, and instruments during any noticed valuation period.
- d. NO INTERFERENCE: Petitioner is prohibited from obstructing entry, changing access codes without notice, or requiring Respondent to pay for third-party observers (such as private security) as a condition of entry.
- e. UNOBSTRUCTED ACCESS: Petitioner is prohibited from changing gate codes, door codes, or locks to the residence at 31 Navajo Ave without providing Respondent the new codes/keys at least 48 hours in advance of any noticed access.
- f. NO THIRD-PARTY REQUIREMENTS: Petitioner is prohibited from requiring Respondent to pay for or coordinate with third-party "observers," private security, or "guards" as a condition of entry.
- g. NON-INTERFERENCE: Petitioner shall not interfere with, harass, or follow Respondent or his agents while they are on the premises for the court-ordered purposes of valuation and property retrieval.

7) On 4/21/2026, Husband filed a Responsive Declaration to Wife's 3/20/2026 Request for Order. Husband states that Wife's attorney unilaterally increased the "previously observed 48-hour noticed period... to 72 hours," which led Husband to miss the deadline to file his tax returns. Husband states Petitioner has hired guards to prevent him from viewing the current state of the home, inventorying community property, and locating or retrieving his personal property situated throughout the house. Husband states Wife has taped off specific areas within the shared garage and common spaces. Husband states Wife's hired guards monitor and report his movements to Wife in real time. Husband asks the Court to:

- a. Order Wife to immediately cease the use of hired guards, observers, or monitors to oversee, record, or restrict Husband's access to the property;
- b. Grant Husband access to the entire residence (excluding Wife's private bedroom) to retrieve personal property and inventory community assets upon 48 hours' notice provided via email and/or text;

- c. If the Court declines to order an immediate sale, grant Husband access to up to three (3) licensed real estate agents of his choosing to perform interior and exterior evaluations for the purpose of establishing a neutral fair market value, with each visit limited to a duration of 60 minutes;
- d. Order Wife not to obstruct, "tape off," or otherwise interfere with Husband's access to any portion of the residence or lot (excluding Wife's private bedroom) during scheduled visits.
- e. Husband to provide Wife with copies of any resulting valuation reports ("CMAs or appraisals") within 48 hours of Husband's receipt of said documents.

8) On 4/21/2026, Husband filed a Supplemental Declaration which contains identical allegations and requests as his Responsive Declaration but includes additional exhibits.

9) At the prior 5/5/2026 hearing date, the Court adopted its Tentative Ruling without objection (see Findings and Order After Hearing filed 5/12/2026) and made orders regarding the parties' access to the Navajo Ave. residence and ability to retrieve belongings. The Court stated it intended to appoint a real estate professional as the Court's Evidence Code section 730 expert to appraise the present-day value of the Navajo Ave. residence under Family Code section 2552. The Court ordered each party to meet and confer regarding the selection of an appraiser, set a future hearing date of 6/30/2026, and ordered the parties to file and serve a declaration at least 5 days in advance of the 6/30/2026 hearing with their proposed appraiser if the parties could not reach an agreement. The Court also set a future hearing date of 8/6/2026 to review the parties' positions regarding the appraisal and whether they intend to accept or challenge it.

B. Findings and Order After Hearing

- 1) There have been no pleadings filed since the prior 5/5/2026 hearing date. As the Court only required the parties to file and serve declarations if they were unable to reach an agreement regarding an appraiser, the Court assumes that an appraiser was selected.
- 2) The 8/6/2026 hearing remains on calendar to review the parties' positions regarding the appraisal and whether they intend to accept or challenge it.

- 1 3) At least 10 calendar days prior to the 8/6/2026 hearing date, both parties shall file and serve
2 declarations (not to exceed 5 pages, not including exhibits) providing any material updates to the
3 Court.
- 4 4) Wife's attorney shall prepare the Findings and Order After Hearing.
- 5 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
6 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
7 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
8 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
9 proposed order after hearing directly to the court. Failure to submit the order after hearing within
10 10 days may allow the other party to prepare a proposed order and submit it to the court in
11 accordance with CA Rules of Court, Rule 5.125(d).
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